



Application for Family or civil legal aid

If you have any questions call 0800 2 LEGAL AID (253 425) or go to: www.justice.govt.nz/legal-aid

Personal details

1 Title Miss Ms Mrs Mr

2 Full name

3 Have you ever used another name? Yes No

If yes – list your other names used.

4 Date of birth dd / mm / yyyy

5 Your current address

6 Your postal address
(if different from current address)

7 Mobile phone

8 Home phone

9 Work phone

10 Other contact phone
Whose number is this?

11 Email

Living arrangements

12 Do you have a partner who lives with you? Yes No

If yes – partner's full name:

13 How many children do you have under 18 years old? How many of those are living with you?

Income

14 The income you and/or your partner receive:

Note that the following payments are excluded when we are assessing your income: the Accommodation Supplement, Emergency Benefit, Disability Allowance, Special Benefit, Child Disability Allowance, Unsupported Child Benefit and, if either you or your partner are in prison, your partner's income and assets.

	You \$ (before tax)	Partner \$ (before tax)	Frequency (eg weekly/monthly/annual)
Wages or salary			
Employer name, phone, address:			
Business/self employed			
Working for Families Tax Credits			
Income from rent(s)			
Interest or dividends			
Income from a Trust – please also complete questions 15 and 16			
Other			
Pension or benefit:			
1. Jobseeker support			
2. Sole parent benefit			
3. Supported Living Payment			
4. NZ Superannuation			
5. Student Allowance			
6. Other – please tell us what it is			
What is your WINZ number?			

Complete this section if you have an interest in a Trust:

15 Does the Trust owe money to you and/or your partner? Yes ☐ No ☐

How much? \$

16 When will you receive this money? Don't know ☐

17 If you don't receive an income, how are you financially supported?

Assets and debts

18 Do you and/or your partner own or have an interest in a home or land and/or property?

Yes ☐ No ☐

Property address	
Legal owner of property	
Estimated value \$	
Mortgage balance \$	

Is it in a Trust?

Yes ☐ No ☐

Is it registered under the Joint Family Homes Act?

Yes ☐ No ☐

Is it on/or Māori land?

Yes ☐ No ☐

What is your share of ownership of it? (eg 50%)

%

Is it in dispute?

Yes ☐ No ☐

If you and/or your partner have more than one property please provide this information as above on another page.

19 Do you and/or your partner have any money or investments?

Yes ☐ No ☐

	You \$	Partner \$	Is it in dispute?		
Cash, savings and term deposits			Yes	No	
Shares and bonds			Yes	No	
Retirement funds (not Kiwisaver)			Yes	No	
Other – including money owed to you			Yes	No	

20 Do you and/or your partner have any items that have a resale value of \$3,500 or more? (eg motor vehicles, boats, etc)

Yes ☐ No ☐

Description	Value \$	Amount owing \$ (for vehicles only)	Is it in dispute?		
			Yes	No	
			Yes	No	
			Yes	No	
			Yes	No	

21 Do you and/or your partner have any debts?

Yes ☐ No ☐

If yes – what is the balance owing?

	You \$	Partner \$	Is it in dispute?		
Bank overdraft or personal debt credit cards			Yes	No	
Fines, tax, student loan			Yes	No	
Hire purchase			Yes	No	
WINZ			Yes	No	
Other			Yes	No	

Other financial information

22 Are there any other reasons why you can't pay for your own lawyer?

23 Has any lawyer received any payments (other than legal aid) or entered into any private fee arrangement for work in regards to this matter? If yes – please provide name, work completed and total paid to the lawyer.

Documents to be attached to this application

24 Please attach the following:

Proof of your income (eg payslip, bank statements, WINZ benefit, income tax statements, Working for Families/or for a business set of latest accounts).

Proof of your partner's income (eg payslip, bank statements, WINZ benefit, income tax statements, Working for Families/or for a business set of latest accounts).

If you have an interest in a Trust please attach:

a copy of original Trust deed

a copy of latest financial accounts for the Trust.

Applicant confirmation

By signing this application form, you agree that:

You don't have to provide us with information, but if you don't provide all the information requested, your application may not be able to be assessed, or may be declined.

Your application may be refused if you have any debt from a previous legal aid grant.

Personal information about you will be collected and/or disclosed to meet responsibilities under the Legal Services Act 2011 (the Act), associated regulations and/or any other relevant statute or court order. This information may be used for statistical and/or research purposes and in this context will not individually identify you.

You have the right to have access to all information held about you, and to request correction of that information under the Privacy Act 2020.

We will assess your financial means and as a result you may be required to repay some or all of your legal aid. Any assets or property that you own may be subject to a charge to cover some or the entire repayment amount. This includes any costs or settlements awarded to you.

If you receive or keep any assets, property or money as a result of the case, they are also subject to a charge to cover some or all of your legal aid costs.

If you don't meet your repayment obligations we may:

- » send your debt to a third party debt collection agency and add the collection costs to the amount owed and
- » issue a deduction notice to automatically deduct payments from your benefit, employment income or bank account.

While receiving legal aid or if you have a legal aid debt:

- » you must let us know immediately if you have changed your address, or if your income or assets change
- » provide updated information about your financial means if we ask.

It is an offence, (which could result in a conviction or a fine) to:

- » not answer questions or produce false documents when you are required to do so under the provisions of the Act or associated regulations, without reasonable excuse
- » knowingly provide false and misleading information, or answer any question in a false and misleading way and
- » intentionally avoid payment to legal aid.

You consent to:

- » legal aid contacting Work and Income or any other third party to obtain verification of your financial means, benefit income, bank account, employer, address and phone number. This could include Work and Income providing information about your benefit and asking other third parties (including your employer, bank or other income source) to provide the information when asked
- » your information being saved/stored in an electronic and/or physical form (unless you advise us otherwise)
- » you have read and understood the information, rights and responsibilities explained above.

You confirm that:

- » the information you have given in this application is true, not misleading, and completed to the best of your knowledge.
- » you have no insurance or indemnification available to cover some or all of your legal costs.

Signature of applicant/representative

Date

dd / mm / yyyy

Click [View](#) → [Fill & Sign](#) → [Place Signature](#)

Representative name

Relationship to applicant

Get more information

If you need help filling in this form, please contact your lawyer. If you don't have a lawyer, you can search the 'Find a lawyer' tool on our website <http://www2.justice.govt.nz/find-a-legal-aid-lawyer/>

Information about the application process and any grant approved can be found at: www.justice.govt.nz/apply-for-family-or-civil-legal-aid

 To learn how to sign a PDF document, go to: <https://helpx.adobe.com/reader/using/sign-pdfs.html>

Lawyer's details

To be completed by your lawyer

25 LA Provider number

26 Full lawyer name

27 Name of instructing solicitor (if required)

Proceedings

28 What date were instructions first received?

dd / mm / yyyy

29 Have any of the matters subject to the application been disposed of in court, tribunal or any other means?

Yes

☐

No

☐

If yes – what was the date of final disposition?

dd / mm / yyyy

30 Give reasons for any delay in submitting this application:

31	What is the proposed proceeding(s) including court/tribunal and location?

32	If this is a mental health application, is it application for repeat instructions?	Yes	No
If Yes – date of last review		dd / mm / yyyy	

Civil legal aid only

34 Have there been any negotiation or settlement offers in this matter?

Yes

No

If yes – provide details:

35 Is the applicant concerned in a representative, fiduciary or official capacity only?

Yes

No

If yes, is it likely the court would order costs be paid out of the estate or fund?

Yes

No

36 Are there any other people who have an interest in this matter?

Yes

No

If yes, would any person beneficially interested suffer hardship?

Yes

No

Cost of work not covered by any fixed fee schedules or proceedings steps

37 Complete these tables for funding sought that is not covered by fixed fee schedules or proceedings steps. Please state all values exclusive of GST.

Proceedings type (eg summary, judgment, harassment)	Steps/stage	Hours sought	Total (excl GST)

Other (eg interlocutory application)	Steps/stage	Hours sought	Total (excl GST)

Disbursements	Steps/stage	Hours sought	Total (excl GST)
Total			\$
Total (GST)			\$
Grand Total incl GST			\$

Lawyer's confirmation

As the lead lawyer completing and signing the application form:

- » I acknowledge and confirm my obligation to take all reasonable steps to protect the interests of the Legal Services Commissioner (the Commissioner) in relation to charges and proceeds of proceedings.

I also confirm that:

- » I will advise the Commissioner if circumstances arise that would affect the prospects of success of the proceedings,
- » the applicant has been advised about their responsibilities and rights.

I am aware of my obligations to notify the Commissioner:

- » of any change to the applicant's address, or any increase in their income or assets (where I am aware),
- » that the applicant avoided/is avoiding/is attempting to avoid making payments to the Commissioner from proceeds of proceedings (where I am aware).

I have advised the applicant:

- » that any arrears from a previous grant of legal aid could mean that this application is refused
- » of the fact that they have waived legal professional privilege for the purpose of an audit or an investigation by the Performance Review Committee or any other investigation of me under the Act and the effects and implications of that waiver
- » that a repayment may be required
- » of the debt recovery powers of the Commissioner.
- » if the applicant appeared via audio visual link (AVL) they consent to me signing the form on their behalf.

Signature of lawyer/representative

Date

dd / mm / yyyy

Click: [View](#) → [Fill & Sign](#) → [Place Signature](#)

 To learn how to sign a PDF document, go to: <https://helpx.adobe.com/reader/using/sign-pdfs.html>

More information

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You can email the completed form to:

- » aklfamilylegalaid@justice.govt.nz
- » aklcivillegalaid@justice.govt.nz
- » wgnfamilylegalaid@justice.govt.nz
- » wgncivillegalaid@justice.govt.nz

Or post it to:

- » Legal Aid Services
BX10660, Auckland
- » Legal Aid Services
SX10146, Wellington

CLEAR

PRINT